

After *SFFA v. Harvard*: Predictions that Didn't Come True

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A landmark June 2023 U.S. Supreme Court decision (*SFFA v. Harvard*) held that race-based admissions at colleges and universities are unconstitutional. During the litigation, elite schools predicted what would happen if SFFA were to win, as it went on to do. Thirty-three selective colleges forecast Black enrollment declines of 50 to 70 percent. Fifteen research universities assured the Court that race-neutral admissions “would undercut” the diversity they seek. Harvard’s expert witness, David Card, estimated that eliminating racial preferences would cut the Black share of Harvard’s admitted class from 14 percent to 6 percent. I test these predictions using Common Data Set and IPEDS records for sixty-three selective institutions through fall 2025. Relative to the 2010-2015 litigation-era baseline, the average Black share of the entering class is steady or slightly higher, and Harvard sits at its pre-ruling level. Because that share rose after the events of 2020, the post-ruling classes do sit below the 2020-2023 levels, by roughly a tenth at the thirty-three colleges and a fifth at the fifteen universities, but far short of the forecast declines. The results raise the issue: Does following the Court’s ruling not have the predicted effect, or are the schools not abiding by the decision?

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The Supreme Court’s decision in *Students for Fair Admissions v. Harvard* (600 U.S. 181, decided June 29, 2023) prohibited the consideration of race in college admissions. During the litigation, the affected institutions committed themselves to forecasts as to what such a prohibition would do. A coalition of 33 selective colleges filed an amicus brief insisting that Black enrollment would fall by 50 to 70 percent (Amherst Brief 2022, 13-14). Fifteen research universities assured the Court that race-neutral admissions “would undercut” the diversity they seek (Universities Brief 2022, 25). Harvard expert David Card simulated race-blind admission for the Class of 2019 and reported that the Black share of admitted students would fall from 14 percent to 6 percent (Card 2017, 103).

Enrollment records for the first two admissions cycles conducted under the new legal regime, the entering classes of fall 2024 and fall 2025, are now available, and the forecasts can therefore be evaluated against realized outcomes.

The evaluation is less straightforward than it appears. The only publicly available enrollment statistics come from the Common Data Set (CDS), a standardized annual disclosure filed by nearly every selective college, and from the federal IPEDS Fall Enrollment survey. Card's figures were computed on a different population (admitted rather than enrolled students, domestic applicants only) under a different racial classification scheme (Harvard's internal coding, which assigns multiracial applicants to single categories). The two conventions, applied to the same cohort, produce Black shares that differ by roughly a factor of two. Comparing Harvard's post-ruling filings with its pre-ruling filings requires no conversion, and that comparison shows entering classes indistinguishable from the litigation-era classes Harvard enrolled while practicing the admissions system it defended at trial. Conversion is required only to test a filing against the race-blind share in Card's simulation, and once it is applied, the post-ruling filings sit at roughly twice his race-blind benchmark.

The paper's primary conclusion is that elite institutions enroll classes whose racial composition, measured against the litigation-era baseline, is essentially unchanged by *SFFA*, a stability their own litigation forecasts said race-neutral admissions could not produce. I support this conclusion with several bodies of evidence.

- Mean Black enrollment across the 33 amici colleges is above, not below, the fall 2010-2015 baseline, and about ten percent below the elevated classes of 2020 through 2023.
- Mean Black enrollment at the 15 research universities that told the Court race-neutral admissions would undercut their diversity moved from 7.4 percent of US first-years in fall 2010-2015 to 7.2 percent, roughly a fifth below the level of the 2020 through 2023 classes, and six of the fifteen enroll more Black students, relative to class size, than in the 2010-2015 window.
- The ratio of Asian to Black first-year students across the 47 top-ranked institutions has moved, since the eve of the ruling, a small fraction of the distance toward the levels observed at universities bound by California's Proposition 209, the closest available approximation to a race-blind benchmark.
- Black enrollment at Harvard sits at its 2010-2015 level.

These comparisons, except where stated, use the entering classes of fall 2010 through 2015 as the baseline because the litigation did. Card's models were estimated on those cohorts. Comparisons against both baselines, the litigation window and the elevated classes of 2020 through 2023, appear throughout the paper, and at the group level neither approaches the forecast declines of 50 to 70 percent. These results raise the issue: Does abiding by the decision not have the predicted effect, or are the schools not abiding by the decision?

The paper also raises concerns about the role of economic expertise. Card’s report was produced for litigation and stated its predictions in units that correspond to no publicly reported statistic. The analyses on the plaintiff’s side did enter scholarly journals (Arcidiacono, Kinsler, and Ransom 2022a, 2022b), but the defense simulation by Card that became the public reference point did not, and no mapping between its conventions and the CDS categories has previously been published. Harvard’s post-ruling disclosures, documented below, illustrate the consequence: the university’s announcements and its federal filings describe the same entering classes with Black shares that differ by nearly a factor of two. The conversion that I develop here may help in mitigating the ambiguity.

Related Literature

A substantial empirical literature, extending back three decades, estimates the magnitude of racial preferences at selective institutions, and its results are consistent enough to summarize briefly. William G. Bowen and Derek Bok, in work first published in 1998, calculated from the 1989 entering cohort of the College and Beyond schools that race-neutral admission would have reduced the Black share of matriculants from 7.1 percent to between 2.1 and 3.6 percent (Bowen and Bok 2018, 39). Espenshade and Chung (2005), simulating admissions at three elite private universities from 1997 application records, found that eliminating racial preferences would cut the acceptance rate of Black candidates from 33.7 to 12.2 percent, reduce the Black share of the admitted class from 9.0 to 3.3 percent, and leave Asian applicants filling nearly four of every five vacated seats. Arcidiacono and Lovenheim (2016) survey the broader literature and report similar effect sizes wherever selective admissions are modeled. These simulations are the direct intellectual ancestors of the forecasts the amici colleges placed before the Supreme Court.

The SFFA litigation itself generated the most detailed estimates in the literature, because discovery gave the experts on both sides access to complete applicant-level records. From the Harvard and UNC data, Peter Arcidiacono, Josh Kinsler, and Tyler Ransom published three peer-reviewed studies. They found that the typical Black admit to Harvard would have faced an admission rate roughly four times lower had the identical application been evaluated as White, with preferences largest for applicants from advantaged backgrounds (Arcidiacono, Kinsler, and Ransom 2023), that Asian American applicants faced a penalty relative to observably similar White applicants (Arcidiacono, Kinsler, and Ransom 2022a), and that preferences for legacies and athletes flowed overwhelmingly to White applicants (Arcidiacono, Kinsler, and Ransom 2022b). Card’s simulated decline from 14 to 6 percent, described in the next section, is the defense counterpart of these estimates. The two sides disputed modeling choices at length, but no expert in the case produced a model in which removing racial preferences left the racial composition of the class approximately unchanged.

A complementary quasi-experimental literature studies what happens when selective institutions actually stop considering race. California’s Proposition 209 is the cleanest case. Bleemer (2022) links every University of California applicant from 1994 through 2002 to later educational

and labor-market records and shows that the ban produced immediate, large declines in underrepresented minority enrollment at the most selective campuses, cascading those applicants into less selective institutions and lowering their subsequent wages. Hinrichs (2012) finds in national data that statewide bans leave aggregate minority enrollment roughly unchanged while reducing it sharply at the most selective institutions, the segment occupied by every school studied here. These episodes supply an empirical benchmark. Where race-conscious admission genuinely ends at a highly selective institution, the compositional change is large and immediate.

The stakes of the compositional question are documented by Chetty, Deming, and Friedman (2026), who estimate the causal effect of attending an Ivy-Plus college on reaching the top of the income distribution and on entry into leadership positions. Their subject is the consequence of admission rather than its determinants, but their findings explain why the demographics of a few dozen institutions enrolling a fraction of one percent of American undergraduates command the attention they do.

The first post-ruling admissions cycle, for the class entering in fall 2024, attracted systematic study. Bloem et al. (2026) examine how students' college destinations changed in the ruling's first year, linking more than twelve million College Board test takers to their college enrollment records. Their baseline is the fall 2021 through 2023 entering classes, the elevated post-2020 cohorts visible in Figure 1 below, their institutional groups are defined by pre-pandemic acceptance rates, and their headline measure combines all underrepresented minority students among first-year domestic enrollees. They estimate that the underrepresented minority share at highly selective colleges fell 4 to 5 percentage points in fall 2024, about 18 percent, with displaced students cascading into less selective institutions and the offsetting gains at the most selective colleges accruing, in their accounting, to White students.

Snider (2026) examines how the ruling changed the racial and socioeconomic composition of entering classes across the whole selectivity distribution, using IPEDS records for 2018 through 2024, full-time first-time students, and institutional tiers from Barron's ratings. In raw first differences, her Table 1 shows the Black share of first-years at the two most selective tiers falling from 5.6 percent over 2018-2023 to 5.1 percent in fall 2024, about 9 percent, with the White share falling three points and Black enrollment growing at non-selective institutions. Her preferred difference-in-differences estimates, which adjust for the differing pre-2024 trends across tiers, put the Black decline at 20 percent at the two most selective tiers, concentrated at private institutions, with White shares rising rather than falling.

Murphy (2026) offers the broadest descriptive accounting of the ruling's first year, covering first-time enrollment at 3,198 institutions of every kind. His baseline is the average of the 2022 and 2023 entering classes, and his groups are defined by 2024 acceptance rates along with a twelve-school Ivy Plus cohort. At the Ivy Plus schools the Black share of the entering class fell just over two percentage points, a 25 percent relative decline, while Black freshman enrollment rose at most state flagships and Asian American freshman counts at the Ivy Plus schools grew 7 percent.

These studies and this paper differ along four dimensions, and each choice is reasonable for its purpose. The baselines differ: 2021-2023, 2018-2023, and the average of 2022 and 2023, against this paper's 2010-2015. I use the litigation window because the litigation is my subject. The forecasts under examination were largely estimated on data from those years, and the litigation, not I, fixed the period. The institutional groupings differ: acceptance-rate cutoffs and Barron's tiers, against the groups that actually spoke in the case, Harvard, the fifteen research universities, and the thirty-three amici colleges. The measurements differ in both numerator and denominator: Black students alone or all underrepresented minorities, over whole classes, domestic students, or full-time enrollees. None of the three examines the ratio of Asian to Black first-years, the statistic closest to the discrimination claim on which the case was brought. And the outcome windows differ: all three studies stop at fall 2024, while this paper adds fall 2025, the cycle in which several of the largest first-year movements reversed. These choices matter for the headline number, which ranges from about 9 percent to 25 percent across the three studies. They do not matter for the conclusion of this paper. My estimates are in harmony with theirs once the baselines are aligned, and under every baseline, grouping, and measure, the change in Black enrollment at elite institutions falls well short of the 50 to 70 percent decline the institutions themselves forecast. What this literature still does not contain is a comparison of the *SFFA* predictions with realized post-ruling enrollment, stated in the units in which the predictions were issued. The prediction side of the record closed in 2023. The outcome side, now two entering classes deep, sits in public filings, and the remainder of this paper performs the comparison.

The Litigation Forecasts

Card's report, filed December 15, 2017, estimated admissions models on Harvard's internal records for applicants to the Classes of 2014 through 2019 and then simulated the Class of 2019 admissions cycle with the race coefficients set to zero:

In my simulation, the share of African-American students in the admitted class would drop from 14% to 6%. The fraction of Hispanic or Other students would fall from 14% to 9%. The fraction of admitted students who are Asian-American would rise from 24% to 27%. And the fraction of admitted students who are White would rise from 40% to 48%. (Card 2017, 103)

The simulation's baseline of 14 percent has a specific and unfamiliar meaning. Card's sample contains the 1,679 admitted students to the Class of 2019 who appear in his preferred regression model, and 234 of them, or 14 percent, are recorded as African American (Card 2017, 125). Three restrictions separate this population from anything in a public filing. It counts admitted students rather than enrolled ones. It is limited to domestic applicants, defined as citizens and permanent residents, a restriction that runs throughout the report (Card 2017, nn. 6, 8). And it classifies race using Harvard's internal scheme, which assigns an applicant marking more than one race to a single category, so Card's Black count is broader than the single-race Black

line in a federal filing. Harvard admitted roughly 2,000 students in the cycle, and the several hundred missing from the sample are internationals and applicants outside the regression model. None of this makes the sample unusable as a baseline. The conversion developed below does not require Card's sample to match the enrolled class member for member, only that the relationship between his population and the enrolled class be stable. That assumption cannot be verified from public data, but as discussed below, the plausible ways it could fail would lower the converted benchmark and so strengthen, rather than weaken, this paper's finding of no change.

Two amicus briefs, both filed August 1, 2022, carried versions of these forecasts to the Supreme Court, and their quantitative commitments differ markedly. The first came from fifteen research universities (Brown, Caltech, Carnegie Mellon, Columbia, Cornell, Dartmouth, Duke, Emory, Johns Hopkins, Princeton, Penn, the University of Chicago, Vanderbilt, Washington University in St. Louis, and Yale), a group that includes neither Harvard nor any signatory of the second brief. Its one explicit number is Harvard-specific: the trial record showed that the race-neutral alternatives proposed by the petitioner "would lead to a near 33% reduction in the number of African American students admitted" at Harvard (Universities Brief 2022, 25, quoting the district court's findings). The finding the brief quotes summarizes the race-neutral simulations offered by the petitioner's expert, under which African American representation in Harvard's incoming class "would fall nearly one-third to approximately 10% of the class" (*SFFA v. Harvard*, 397 F. Supp. 3d at 178-84). The 33 percent figure is smaller than Card's 57 percent relative decline because it describes a different counterfactual, the petitioner's proposed alternatives with their compensating policy changes, rather than the removal of race with nothing else altered. Both figures rest on the same underlying applicant data. Regarding their own campuses, the fifteen universities made no numerical forecast. Their claims were qualitative but unambiguous in direction: exclusively race-neutral admissions "would undercut Amici's efforts to attain 'the benefits of diversity' they seek," and "no race-neutral alternative presently can fully replace race-conscious individualized and holistic review" (Universities Brief 2022, 25, 31). The brief thus committed its signatories to the proposition that compliance with the petitioner's requested rule would visibly reduce racial diversity at their own institutions.

The second brief, organized by Amherst and joined by thirty-two other colleges and universities, made the broadest quantitative claims in the record:

Black enrollment would likely decline between 50% and 70%; the probability of Black applicants receiving offers of admission would drop to half that of white students; and the percentage of Black students matriculating would drop from roughly 7.1% of the student body to 2.1%. Strictly enforced, a 'do not consider race' policy would 'presumably take [B]lack enrollments . . . back to early 1960s levels, before colleges and universities began to make serious efforts to recruit minority students.' (Amherst Brief 2022, 13-14)

The brief's footnote for the entire quoted passage is Bowen and Bok (2018, 39), whose simulations on the 1989 entering cohort of the College and Beyond institutions had Black matriculants

falling from 7.1 percent to between 2.1 and 3.6 percent, declines of 49 to 70 percent. The interval, the halved admission probability, and the 7.1-to-2.1 endpoints are therefore one simulation, run on a cohort that entered college a third of a century before the ruling. A separate footnote attaches Grodsky and Kurlaender (2006, 7-10) to the preceding sentence’s general claim of a “drastic resegregating impact.” The single contemporary, institution-specific estimate in the brief is attributed to Amherst’s internal planning: an entirely race-blind policy would reduce the college’s combined Native American, Black, and Hispanic enrollment “by approximately half” (Amherst Brief 2022, 14). The supporting footnote supplies neither a document, a date, nor a cohort, noting only that the underlying studies formed part of the periodic review of admissions policy that *Grutter v. Bollinger* requires of institutions using racial preferences. The amici therefore left no single well-specified counterfactual, and I evaluate their forecast as a proportional claim against several candidate baselines below.

The economics profession participated in the litigation directly, on both sides. A group of economists filed in support of the petitioner attacking the lower courts’ reliance on Card’s model (Economists Brief 2022). Sixteen economists and statisticians (George A. Akerlof, Sandy Baum, Rebecca M. Blank, Hilary Hoynes, Guido W. Imbens, Kirabo Jackson, Rucker Johnson, Helen F. Ladd, David S. Lee, Trevon D. Logan, Michael McPherson, Jesse Rothstein, Robert M. Solow, Sarah Turner, Ebonya Washington, and Douglas Webber) answered in support of Harvard, among them three Nobel laureates: Akerlof, Solow, and Imbens, the last a co-recipient of the 2021 prize that Card shared. Their brief attested that Card “is one of the most outstanding and respected scholars in the field of econometrics and applied economics,” that “his statistical analyses in this case were methodologically sound,” and that “the criticisms of the lower courts’ consideration of Dr. Card’s analyses in the Brief of Economists as Amici Curiae in Support of Petitioner . . . are not credible” (Economics Professors Brief 2022, 1-2). Prominent economists endorsed Card’s analysis to the Court, so the predictions tested below command professional endorsement and are not simply one paid expert’s judgment.

Post-SFFA Results

Data

I assembled enrollment records for sixty-three selective colleges and universities from two sources. The sixty-three are the union of the forty-seven institutions in the 2026 US News top-25 National University and top-25 National Liberal Arts College lists with the forty-nine litigation participants examined above (Harvard, the fifteen universities, and the thirty-three amici); the two groups share thirty-three members. The three federal service academies appear in the liberal arts ranking but are excluded throughout: their admissions run through congressional nomination and service commitments, and the Naval Academy publishes no Common Data Set at all. The first source is CDS item B2, which reports first-time first-year enrollment by racial and ethnic category. I collected every publicly available CDS filing for each institution from 1998-99 through 2025-26, extracting the B2 tables from PDF, spreadsheet,

and web formats. The second is the IPEDS Fall Enrollment component for 2008 through 2024, which reports the same categories under the same federal definitions. For any institution-year covered by both sources, the IPEDS record is used, since its uniform structure eliminates the parsing errors that school-specific PDF layouts occasionally introduce. CDS filings supply the years outside IPEDS coverage, most importantly fall 2025, for which fifty-one of the sixty-three institutions had published a usable filing at the time of writing (thirty-nine of them among the forty-seven top-ranked institutions, the count relevant to the cohort figures below). All statistics below refer to first-time first-year students.

All comparisons below require a pre-ruling baseline, and the baseline I use is the entering classes of fall 2010 through fall 2015. The litigation supplies this window. Card estimated his admissions models on applicants to the Classes of 2014 through 2019, that is, the classes entering in the falls of 2010 through 2015, and the admissions modeling in the case ended with those cohorts. Testing the litigation’s forecasts against the litigation’s own data window is the point of this paper. The window is exact for Card. The amici built on older data still, a 1989 entering cohort, and specified no window of their own, so their proportional forecast is also evaluated below against four alternative pre-periods, with results insensitive to the choice. The research universities supplied no data of their own, borrowing their one number from the trial record, and so raise no separate window. Other windows are reasonable for other purposes, and the studies reviewed above use them: Snider (2026) measures against 2018-2023, Murphy (2026) against the average of 2022 and 2023, and Bloem et al. (2026) against 2021-2023. Because Black enrollment rose sharply after 2020, those later baselines sit above the litigation window, and against them the post-ruling classes show modest declines. Where the difference matters, I report both comparisons. The choice of baseline changes the sign and the size of the measured change. It does not move the conclusion. Against any of these baselines, the change in Black enrollment falls well short of the 50 to 70 percent decline the institutions forecast.

Two definitions recur. A “US” share divides by total first-year enrollment net of nonresident students, who appear on a separate B2 line and receive no racial classification in these data. A “whole-class” share divides by total first-year enrollment. Federal race categories follow the 2010 IPEDS rules. Hispanic students of any race are reported as Hispanic, non-Hispanic students reporting two or more races are reported in a dedicated multiracial category, and the Black line therefore contains only single-race, non-Hispanic Black students. These rules differ substantially from the classification underlying Card’s figures, a difference quantified below.

Harvard

Commensurability

The three restrictions described in the forecasts section mean that Card’s 14 percent corresponds to no number in a public filing. The federal side of the comparison has its own conventions. A CDS filing counts enrolled students, roughly 1,600 in Harvard’s case, against the roughly 2,000 admitted. It reports international students on a separate line of the same table rather

than excluding them. And it applies the federal race rules, under which Hispanic students of any race are reported as Hispanic and non-Hispanic multiracial students occupy a dedicated category, so the single-race Black line is systematically narrower than Card’s Black count. Matriculation rates do vary somewhat by race, with Black admits enrolling at moderately lower rates than White or Asian admits according to the trial record (*SFFA v. Harvard*, 397 F. Supp. 3d at 155-56), but the magnitude is small relative to the classification wedge, and I treat the combined gap as a single conversion to be estimated rather than decomposed.

The estimation exploits the fact that both metrics can be observed for the identical cohort, the one cohort for which this is possible. Card’s baseline describes students admitted in the spring of 2015. Those who enrolled constitute the fall 2015 entering class, which appears in Harvard’s CDS 2015-16 filing as 109 single-race Black first-years among 1,441 US first-years, or 7.56 percent. The ratio of the federal figure to the expert-report figure, computed on the underlying counts (109/1,441 divided by 234/1,679), is 0.543, and I use 0.54 below. Throughout the paper, shares are displayed to one decimal and proportional changes to the nearest percent, and all calculations use unrounded values.

A prediction stated in Card’s units is converted to the federal metric by multiplication by this factor, so the simulated race-blind share of 6 percent corresponds to 3.3 percent on a CDS filing. This converted benchmark, rather than the unconverted 6 percent, is the quantity against which post-ruling filings should be compared.

The conversion factor bundles the multiracial and Hispanic reassignments, the admit-to-enrollee step, and the domestic-scope adjustment, all measured on the fall 2015 cohort, and may have drifted since. National rates of multiracial identification have risen since then, which would push the current factor below 0.54 and the converted benchmark below 3.3 percent. Nondisclosure of race has also risen, which depresses measured single-race shares in recent filings. Both developments bias the comparison toward finding compliance. Matriculation rates are a third potential source of drift, since post-ruling recruiting or financial aid could have changed the rate at which admitted Black students enroll, but the yield differences documented at trial amounted to a few percentage points against a classification wedge of nearly a factor of two, so movement in this channel is second order. Estimates of no change therefore cannot be attributed to drift in the factor, a point developed further below.

The Post-Ruling Classes

Harvard’s CDS filing for 2025-26 reports 97 Black first-year students in an entering class of 1,673, which is 5.8 percent of the whole class and 6.8 percent of US first-years. Read against the unconverted simulation, a figure of 5.8 percent suggests that Card’s race-blind counterfactual has essentially been realized. Read against the converted benchmark of 3.3 percent, it indicates the opposite. Table 1 assembles the comparison in both metrics, averaging the two post-ruling classes to reduce year-to-year noise, to parallel the 2010-2015 averaging of the baseline.

Table 1: Black share of Harvard’s entering class under the federal (CDS) metric and the expert-report (Card) metric. The CDS metric is the single-race Black share of enrolled US first-years. The conversion factor between metrics is 0.54, calibrated on the Class of 2019, the one cohort observable in both metrics. Card-unit entries other than the calibration cohort are obtained by conversion; the fall 2010-2015 average is a CDS-side quantity only.

	CDS units	Card units
Calibration cohort (Class of 2019, entered fall 2015)	7.6%	13.9%
Fall 2010-2015 average	7.5%	—
Race-blind simulation (Card 2017)	3.3%	6.0%
Post-ruling classes (Classes of 2028-29, avg)	7.5%	13.8%

The entering classes of fall 2024 and fall 2025 carried US Black shares of 8.14 and 6.82 percent respectively, averaging 7.48 percent. The 2010-2015 mean is 7.53 percent. The post-ruling average sits within about a twentieth of a percentage point of the pre-ruling average, and both display as 7.5 percent at the paper’s reporting precision. Converted into Card’s own units, the post-ruling classes correspond to 13.8 percent Black, against the calibration cohort’s 13.9. If the race-blind counterfactual in the expert report is taken at face value, the gap between what a compliant Harvard would report and what Harvard does report exceeds a factor of two.

Two measurement objections require examination. The first concerns nondisclosure. If Black students became disproportionately likely to decline the race question after the ruling, single-race Black shares would fall mechanically. The denominator of the US share includes nondisclosers, so a withheld identification subtracts from the numerator while leaving the denominator intact, and the bias can only run downward. The direction of this bias runs toward compliance, not away from it, so it cannot generate a spurious finding of no change. Its scale is also limited. Harvard’s unknown-race share averaged 5.3 percent over the 2010-2015 baseline cohorts, reached a low of 2.4 percent in 2023, and averages near 8 percent in the post-ruling classes. Relative to the calibration period, the increase is under three percentage points, and Card’s own sample carried an 8 percent race-missing rate. The second objection concerns drift in the conversion factor, addressed above: plausible drift lowers the converted benchmark and widens, rather than narrows, the measured gap. In summary, measured against the litigation window, the filings contain no evidence of movement toward race-blind admissions. Measured against the elevated classes of fall 2020 through 2023, whose mean US Black share was 11.8 percent, they show a decline of roughly 37 percent, well short of the more-than-half decline that Card’s model implies genuinely race-blind admission would produce.

Post-Ruling Disclosure Practice

The unit ambiguity documented above is not confined to expert reports. Harvard’s own public communications since the ruling have employed a metric distinct from the one in its federal

filings. The announcement for the fall 2024 class stated that 14 percent of students identifying a race identified as African American or Black (Harvard Gazette 2024). Two definitional choices produced that figure: race is self-identified without single-race restriction, and the denominator excludes the nondisclosing group, which doubled to 8 percent that same year. The corresponding IPEDS figure for the identical class is 8.1 percent. For the fall 2025 class, the university moved its demographic announcement to late October, when federal reporting obligations come due, and reported 11.5 percent on the same disclosers-only basis (Harvard Crimson 2025), against 6.8 percent of US first-years in its CDS filing. The two sources describe the same students, 1,675 enrolling students in the announcement against 1,673 first-time first-years in the filing, a difference presumably attributable to the timing of the fall census. The point is not that either number is wrong. Each is computed correctly under its own convention. The point is that the two conventions tell different stories about the same students. Read against Card’s unconverted 6 percent, the federal figures suggest a school that stopped considering race. Read against the 14 percent of the litigation era, itself computed under a third convention, the university’s announcements suggest a school whose Black enrollment changed only modestly, and the exact agreement of the fall 2024 announcement with that figure is an accident of the differing metrics. Without a stated conversion between the conventions, neither story can be checked against the other, and enrollment outcomes cannot be monitored by inspection.

The Research Universities

The fifteen universities made no numerical forecast about themselves, but their qualitative commitment is testable. If exclusively race-neutral admissions would undercut the racial diversity these institutions seek, then compliance with the ruling should have produced visible declines in Black enrollment on their own campuses. Table 2 reports Black shares of US first-years, the same metric used for Harvard, over the same pre-period, for each signatory.

Table 2: Black share of first-year US students at the fifteen research universities that filed the Universities Brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025, or reflects fall 2024 alone where no usable 2025-26 filing exists. Changes are computed on unrounded shares and may differ slightly from values recomputed from the rounded shares shown.

University	Fall 2010-15 avg	Fall 2024-25 avg	Change
Carnegie Mellon	6.0%	3.2%	-47%
Columbia	9.9%	7.2%	-28%
Cornell	6.9%	5.0%	-27%
Johns Hopkins	6.0%	4.4%	-27%
Vanderbilt	9.4%	6.9%	-26%
Duke	10.7%	8.5%	-20%
Dartmouth	7.3%	6.0%	-18%

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University	Fall 2010-15 avg	Fall 2024-25 avg	Change
Princeton	8.5%	8.0%	-7%
Brown	7.8%	7.4%	-5%
Emory	10.3%	11.0%	+7%
Chicago	5.7%	6.9%	+22%
Penn	8.0%	9.9%	+24%
Washington Univ.	5.8%	7.4%	+27%
Yale	7.6%	10.0%	+31%
Caltech	1.6%	6.5%	+310%
All 15 signatories (mean)	7.4%	7.2%	-3%

The group mean moved from 7.4 percent to 7.2 percent, a relative decline of about 3 percent. Against the elevated classes of fall 2020 through 2023 the group mean was 9.2 percent, so the post-ruling level also sits below that later baseline, by roughly 22 percent. Six of the fifteen enroll a higher Black share than in the pre-period. No signatory sits at half its baseline. Caltech’s large proportional increase reflects a very low base, from 1.6 to 6.5 percent, and Yale, Washington University, and Penn all enroll between 24 and 31 percent more Black first-years, relative to class size, than they did in the pre-period.

The Amici Colleges

The amici forecast refers to “the student body” without restriction to domestic students and without a stated racial classification, so I evaluate it in whole-class CDS shares, which require no conversion. Doing so is conservative. International enrollment at these colleges grew from roughly 9 percent of the entering class in the early 2010s to roughly 11 percent after the ruling, mechanically deflating recent whole-class shares relative to older ones. Measured stability therefore understates underlying stability.

Table 3 reports whole-class Black shares for every signatory, ordered by proportional change, together with the group mean. The pre-period matches the Harvard estimation window, the entering classes of fall 2010 through fall 2015. Post-ruling entries reflect fall 2024 alone where no usable 2025-26 filing exists.

Table 3: Whole-class Black share for all thirty-three signatories of the Amherst brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025, or reflects fall 2024 alone where no usable 2025-26 filing exists. Changes are computed on unrounded shares and may differ slightly from values recomputed from the rounded shares shown.

School	Fall 2010-15 avg	Fall 2024-25 avg	Change
Amherst	11.8%	4.3%	-63%
Haverford	6.7%	2.8%	-58%
Vassar	5.3%	2.7%	-48%
Bates	5.2%	3.5%	-33%
Mount Holyoke	6.1%	4.7%	-23%
Williams	7.6%	6.1%	-20%
Barnard	6.8%	5.5%	-20%
Wesleyan	7.1%	5.9%	-17%
Colby	3.6%	3.0%	-15%
Wellesley	5.7%	5.1%	-11%
Hamilton	4.6%	4.0%	-11%
Pomona	6.7%	6.0%	-11%
Oberlin	5.5%	5.4%	-2%
Franklin & Marshall	5.1%	5.1%	0%
Bryn Mawr	5.0%	5.0%	+1%
Bowdoin	5.1%	5.2%	+2%
Smith	5.1%	5.7%	+11%
Swarthmore	6.0%	6.7%	+12%
Davidson	6.7%	7.7%	+15%
Sarah Lawrence	3.8%	4.4%	+17%
Trinity	6.0%	7.4%	+23%
Carleton	3.8%	4.8%	+25%
Middlebury	3.7%	4.7%	+27%
Tufts	3.9%	5.1%	+32%
Clark	4.0%	5.8%	+44%
St. Olaf	2.0%	2.9%	+46%
Bucknell	3.2%	4.7%	+47%
Connecticut College	3.8%	6.0%	+60%
Reed	1.8%	3.1%	+70%
Washington & Lee	2.4%	4.7%	+101%
Union	4.1%	8.5%	+106%
Macalester	2.5%	6.1%	+139%
Hampshire	2.6%	9.5%	+265%
All 33 signatories (mean)	4.9%	5.2%	+6%

Mean Black enrollment across the signatories was 4.9 percent of the entering class during the pre-period, climbed to 5.8 percent in the entering classes of 2020 through 2023, and stands at 5.2 percent in the two post-ruling classes. Relative to the benchmark period, the change is positive. Relative to the entering classes of 2020 through 2023, the final cohorts admitted under racial preferences, the post-ruling mean is about 10 percent lower, a comparison in harmony with the declines reported by Snider (2026) and Murphy (2026). The group mean did not fall at all against the litigation baseline, and fell by about a tenth against the later one. Either way it did not fall by half, so the forecast fails at the level of the group before any school-level accounting. Because some institutions lack a usable 2025-26 filing, the post-period mixes one- and two-year averages. Of the thirty-three, twenty-six have filings for both post-ruling years, and the mean over that balanced panel is 5.1 percent, similar to the full-group figure.

Interpreting the brief's 2.1 percent endpoint as an absolute level would misapply it, since that figure describes Bowen and Bok's 1989 cohort rather than these colleges, whose own pre-period mean was 4.9 percent. The transferable content of the forecast is proportional. Applied to each school's own baseline, even the mildest version implies a post-ruling share no greater than half the pre-ruling share. Two signatories out of thirty-three satisfy this criterion. Amherst's post-ruling average is 0.37 of its baseline, and Haverford's is 0.42, a position produced by its fall 2025 filing, which reports eight Black first-year students in a class of 397. The next closest are Vassar at 0.52 and Bates at 0.67, and no other signatory falls below two thirds of its baseline. Because the choice of pre-period is not dictated by the brief, I repeated the calculation for four alternative windows, including the complete set of filings that were public on the day the brief was signed. The group mean and the implied forecast interval are insensitive to the choice, and the count of signatories below half their baseline is two under three of the windows and one under the fourth.

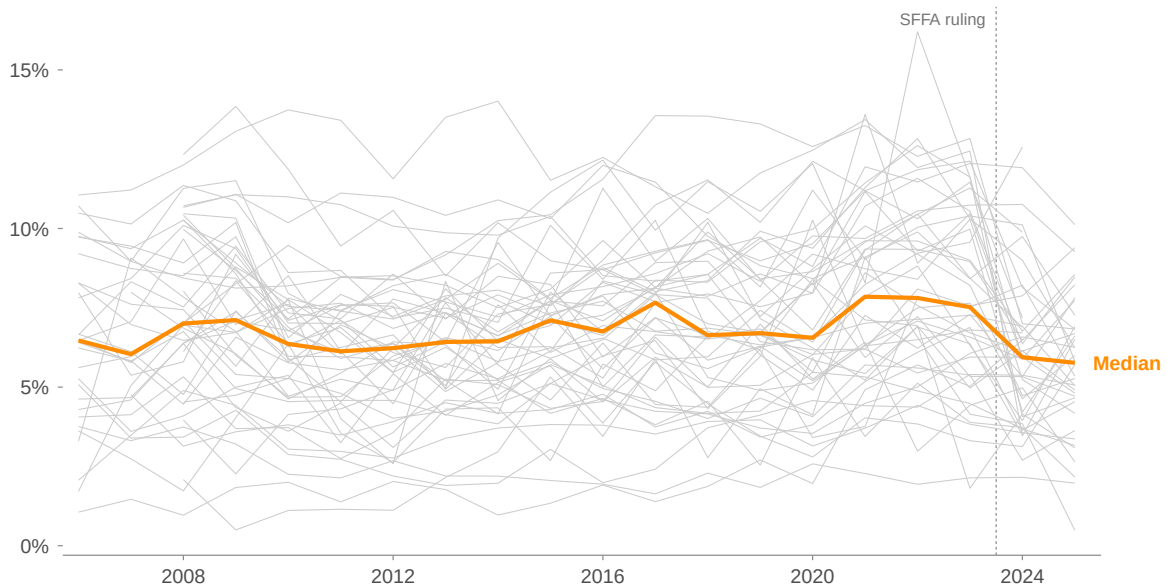
The Top-Ranked Cohort

Extending the analysis to the union of the 2026 US News top-25 National Universities and top-25 National Liberal Arts Colleges, less the three service academies, brings the total to forty-seven institutions. Unlike the three groups examined so far, these forty-seven never acted collectively in the litigation, and several filed nothing at all. The question here is not whether a specific forecast held but whether the patterns documented for the litigation participants extend across the market segment they occupy. Figure 1 plots the US Black share of each school's entering class from fall 2006 through fall 2025 together with the cross-sectional median.

The median share occupied a band between 6.0 and 7.7 percent from 2006 through 2019, rose to a maximum of 7.9 percent in fall 2021, and registered 5.9 and 5.8 percent in the two post-ruling cycles. The net movement from the center of the long-run band is roughly one percentage point, between a fifth and a third of the three-and-a-half to five points that declines of 50 to 70 percent imply on a base near 7 percent. Selection into fall 2025 disclosure does not manufacture this stability. The eight cohort schools without a usable 2025 filing entered fall 2024 with a median Black share of 6.8 percent, against 5.4 percent for the thirty-nine that later filed, so

Figure 1: US Black share of the entering class at the forty-seven institutions in the 2026 US News top-25 National Universities and top-25 National Liberal Arts Colleges (service academies excluded), fall 2006 through fall 2025. Grey lines are individual institutions, the orange line is the cross-sectional median, and the dashed vertical line marks the SFFA ruling. The fall 2025 median is computed over the thirty-nine institutions with usable filings. Sources: IPEDS Fall Enrollment and CDS item B2.

Black Share of First-Year US Students, Top-Ranked Institutions



the missing schools, if anything, depress the observed 2025 median. The full-panel figure will likely be higher.

The 2020-2022 increase identifies the presence of discretionary control. Between the fall 2020 and fall 2022 entering classes, the median Black share rose more than a full percentage point, with relative increases above 20 percent at many institutions, over an interval in which the academic quality and racial composition of the national applicant pool were essentially static. (The College Board's annual Total Group reports for these cohorts show group means and shares nearly unchanged; College Board 2020, 2021, 2022.) The proximate cause was not a change in applicant characteristics but an institutional response to the events of 2020. The episode establishes that these institutions possessed, and exercised, the capacity to shift Black enrollment by large amounts within one to two cycles. That capacity did not vanish in June 2023. The question the post-ruling filings pose is whether the schools stopped using it or are using it still, now to hold Black enrollment steady rather than to raise it.

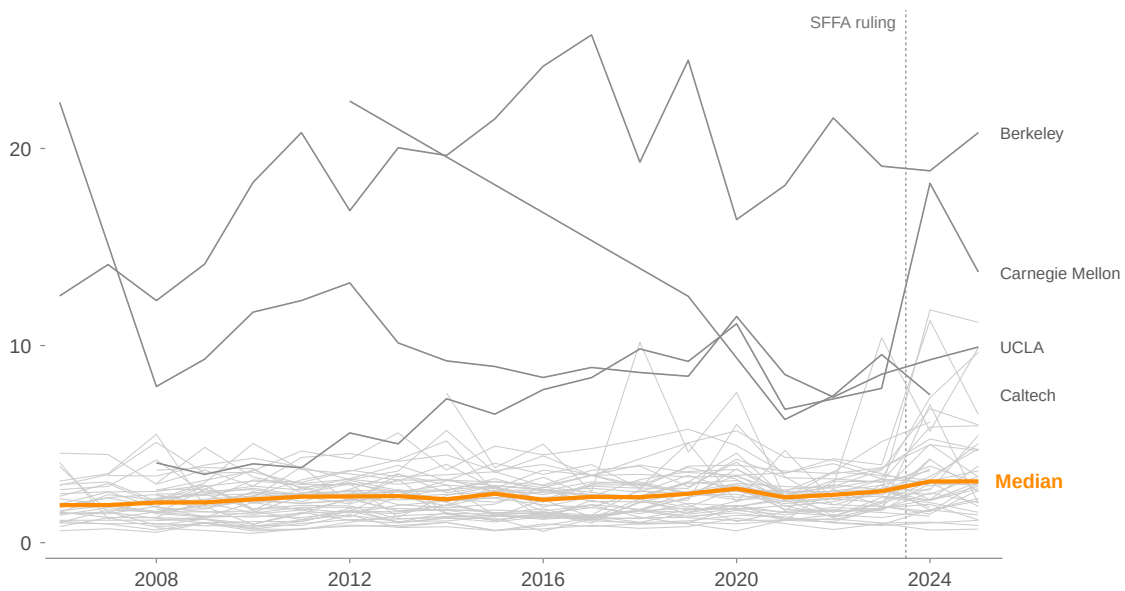
Figure 2 examines the ratio of Asian to Black first-year US students, a statistic chosen for two properties. It requires no denominator, being a quotient of two counts from adjacent lines of the same filing, and it is therefore immune to the international-share and nondisclosure issues discussed above so long as nondisclosure is not strongly race-selective. The litigation context also makes it the natural summary measure, since the plaintiffs were Asian American and the preferences at issue operated most heavily between the Asian and Black margins.

The cohort median drifted from approximately 1.9 in 2006 to 2.6 by 2023 and averages 3.1 across the two post-ruling cycles. Berkeley and UCLA, the California institutions bound by Proposition 209, together with the STEM-intensive schools whose applicant pools skew heavily Asian, occupy ratios between 6 and 13 at the median and up to 25.8 in Berkeley's case (2,396 Asian against 93 Black first-year US students in 2017). California's applicant pool contains proportionally more Asian and fewer Black students than the national pool serving the private institutions, and the University of California has admitted test-blind since 2021, so these values mark the general region rather than the exact level that race-blind selection would imply elsewhere. The post-ruling movement of the cohort median, roughly half a point, covers a small fraction of the interval separating it from that region.

Individual trajectories within the cohort followed a common sequence. The first post-ruling cycle produced large single-school deviations, with Stanford rising to 7.4 against a historical range of 2 to 3, Cornell to 6.8, Amherst to 7.0, Brown to 5.0, and Johns Hopkins to 11.8. In the second cycle most of these reverted, Amherst to 2.0, Brown to 3.3, and Cornell to 6.0, while Stanford continued to 9.7 and Johns Hopkins remained at 11.2. The modal institution experimented with a substantially higher ratio for one cycle and then returned to its historical position.

Figure 2: Ratio of Asian to Black first-year US students at the same forty-seven institutions. Institution-years with fewer than five Black first-years are excluded. Grey lines are individual institutions, the orange line is the cross-sectional median, and the dashed vertical line marks the SFFA ruling. The four labeled institutions, drawn in darker grey, are Berkeley and UCLA, whose admissions California's Proposition 209 (adopted 1996) has bound since the fall 1998 entering class, and two STEM-intensive schools, Caltech and Carnegie Mellon. Sources: IPEDS Fall Enrollment and CDS item B2.

Asian / Black Ratio of First-Year US Students, Top-Ranked Institutions



Two Institutional Trajectories

The aggregate stability documented above conceals two exceptions, one at each end of the range of institutional response.

Amherst's forecast came true, for exactly one cycle. The brief's one institution-specific estimate, drawn from the college's internal planning, concerned combined Native American, Black, and Hispanic enrollment. That combined share averaged 25.2 percent of Amherst's entering class over the pre-period and stood at 23.2 percent in fall 2023, the final cohort admitted under racial preferences. The fall 2024 class registered 13.5 percent, or 0.54 of baseline, with the Black component alone falling from an 11.8 percent baseline to 2.9 percent. The college's public posture treated the outcome as vindication. It announced that 3 percent of the Class of 2028 identified as Black under federal reporting rules, against 11 percent the year before, with domestic students of color falling from 47 to 38 percent of the class (Amherst Student 2024a). National coverage presented the numbers as the realization of the college's own brief. President Michael Elliott called the outcome disappointing and warned that the change could "diminish the sense of belonging" of enrolled students (Amherst Student 2024a). The campus discussion also reproduced, in miniature, the measurement problem documented for Harvard above: under self-identification the same class was 9 percent Black, and under the federal single-race rules it was 3 percent, a gap the student newspaper examined at length (Amherst Student 2024b). The next cycle reversed the outcome. The college expanded digital and in-person recruiting, joined the STARS rural-recruitment network, admitted a record share of first-generation students, and released its class data a month later than usual (Amherst College 2025; Amherst Student 2025). The combined underrepresented share returned to 21.2 percent, the Black share to 5.8 percent, and the Asian-to-Black ratio traced the same arc, rising to 7.0 in the first post-ruling cycle and returning to 2.0 in the second. The institution that treated the ruling as binding matched its own forecast for exactly one cycle and then went back toward the typical racial composition.

Johns Hopkins, by contrast, has presented itself as complying, and its filings support the presentation. Its announced Class of 2028 figures showed underrepresented enrollment falling from 37.0 to 17.6 percent of the class, with the Black share dropping from 13.8 to 5.7 percent in the university's self-identified categories (JHU News-Letter 2024). President Ronald Daniels responded that the university would pursue diversity "while fully complying with the Supreme Court's restriction on the consideration of race in admissions" (Daniels 2024). The second cycle extended the movement instead of reversing it. Local reporting found Asian students rising from 26 percent of the entering class in 2023 to 41 percent in 2024 and 45 percent in 2025, a trajectory without parallel among peer institutions, and the university's comment was that it "complies with federal law and does not consider race or ethnicity in admissions" (Baltimore Banner 2026). In my metrics, Hopkins's Black share of US first-years fell from a 6.0 percent pre-period mean to 4.4 percent, and its Asian-to-Black ratio registered 11.8 and 11.2 in the two post-ruling cycles, leaving it, with Stanford, one of only two institutions still outside its historical range in the second year. Where a school actually stopped considering

race, the movements were large and immediate, and at Hopkins they persisted, above all in the Asian share. Nothing similar appears at the forty-five institutions other than Hopkins and Stanford.

The Test-Taking Population

In the absence of racial preferences, the racial composition of an elite entering class should, all else equal, resemble the racial composition of the students who meet elite academic standards. National testing data describe that population. The College Board's summary of the 2,004,965 SAT takers in the high school graduating class of 2025 reports mean total scores of 1,229 among the 217,459 Asian test-takers and 904 among the 250,887 Black test-takers, a difference exceeding 300 points against group standard deviations near 200 (196 and 212 for the Black and Asian distributions, estimated from the report's score-band tables) (College Board 2025). Distributions separated by that distance thin at very different rates in the upper tail. In the 1400-to-1600 band, approximately the range from which the institutions studied here draw most of their admits, the report counts 56,539 Asian, 52,079 White, 10,752 Hispanic, and 2,509 Black test-takers (College Board 2025, score-distribution tables by race and ethnicity), an Asian-to-Black ratio of 22.5 between two groups of comparable overall size. No party to the litigation proposed admission by test score alone, and holistic review weighs more than scores, so the top-band ratio is a rough guide rather than a point prediction. But any selection process that weights academic credentials heavily and applies no racial offsets would land far closer to that guide than to the enrolled ratio of 2 to 3, which is little changed after *SFFA* and is not the output of such a process.

Conclusion

Two admissions cycles after *SFFA v. Harvard*, the enrollment records of the institutions most affected by the decision, measured against the litigation-era entering classes of fall 2010 through 2015, except where stated, show the following:

- Among the 33 colleges that jointly forecast declines of 50 to 70 percent, mean Black share is marginally higher than in the corresponding benchmark period, and thirty-one of them never approached the mildest version of their own forecast.
- At the 15 research universities that assured the Court that race-neutral admissions would undercut their diversity, the mean Black share of US first-years moved from 7.4 to 7.2 percent, and six signatories sit above their baselines.
- Across the 47 top-ranked institutions, the ratio of Asian to Black first-years, the summary statistic most relevant to the underlying litigation and the one least vulnerable to measurement objections, moved from 2.6 on the eve of the ruling to 3.1, a fraction of the distance to race-blind benchmarks two to eight times higher.

- Harvard’s Black enrollment share, expressed in any internally consistent metric, equals its level in the years when it used the admissions system the Supreme Court found unlawful.

Measured instead against the elevated classes of fall 2020 through 2023, a period akin to the more recent baselines used by Snider (2026), Murphy (2026), and Bloem et al. (2026), Black enrollment at these institutions is lower, by about a tenth at the amici colleges, roughly a fifth at the research universities, and larger margins at some individual campuses. That decline is real. It is also a fraction of the 50 to 70 percent the institutions forecast, under any baseline on offer.

The parsimonious reading of this evidence is that elite institutions have not meaningfully changed the admissions policies the ruling was intended to end. That characterization is an interpretation of the pattern, not a finding the data compel. Two explanations could in principle produce the observed stability. Institutions may have adopted new race-neutral recruiting methods that happened to reproduce, almost exactly, the racial composition their race-conscious methods produced. Or institutions may have continued to consider race in some form. The first requires a coincidence. Race-neutral tools such as rural or first-generation outreach might affect the admissions chances of students of every race, and nothing about them returns a school to its precise pre-ruling racial shares, while aiming them at particular racial groups in order to achieve that return would itself be a form of racial consideration. The second requires no coincidence. The data cannot adjudicate between these explanations. Whether present practice reflects consideration of race as such, which the Court prohibited, or of experiential factors correlated with race, which the Court permitted, is not answerable from aggregate filings.

What the analysis does establish is that the quantitative expertise deployed in the litigation has functioned, after the fact, to obscure the question. The most important prediction in the case was stated in units that no public statistic reports, and any comparison of it against filings computed under incompatible definitions generates an appearance of compliance that a factor-of-two conversion dissolves.

Economists who supply litigation estimates in nonpublic units might reasonably be expected to publish the mapping to public categories at the same time. Absent such mappings, predictions of this kind are unfalsifiable in practice, whatever their merits in principle.

Data and Code

Data and code sufficient to reproduce every number, table, and figure in this paper, including the extraction pipeline that assembles the Common Data Set and IPEDS filings for every school in the analysis, are available at <https://github.com/davidkane9/after-sffa>.

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